



INDIAN POLITY

PARLIAMENTARY PRIVILEGES

MODULE – 72



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PARLIAMENT

PARLIAMENTARY PRIVILEGES

CLASSIFICATION

Parliamentary privileges can be classified into two broad categories:

1. those that are enjoyed by each House of Parliament collectively, and
2. those that are enjoyed by the members individually.

COLLECTIVE PRIVILEGES

The privileges belonging to each House of Parliament collectively are:

- 1 It has the right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same. The 44th Amendment Act of 1978 restored the freedom of the press to publish true reports of parliamentary proceedings without prior permission of the House. But this is not applicable in the case of a secret sitting of the House.
- 2 It can exclude strangers from its proceedings and hold secret sittings to discuss some important matters.

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COLLECTIVE PRIVILEGES

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| <p>3 It can make rules to regulate its own procedure and the conduct of its business and to adjudicate upon such matters.</p> | <p>6 It can institute inquiries and order the attendance of witnesses and send for relevant papers and records.</p> |
| <p>4 It can punish members as well as outsiders for breach of its privileges or its contempt by reprimand, admonition or imprisonment (also suspension or expulsion, in case of members).</p> | <p>7 The courts are prohibited to inquire into the proceedings of a House or its committees.</p> |
| <p>5 It has the right to receive immediate information of the arrest, detention, conviction, imprisonment and release of a member.</p> | <p>8 No person (either a member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precincts of the House without the permission of the presiding officer.</p> |

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INDIVIDUAL PRIVILEGES

The privileges belonging to the members individually are:

FREEDOM FROM ARREST

They cannot be arrested during the session of Parliament and 40 days before the beginning and 40 days after the end of a session. This privilege is available only in civil cases and not in criminal cases or preventive detention cases.

FREEDOM OF SPEECH

They have freedom of speech in Parliament. No member is liable to any proceedings in any court for anything said or any vote given by him in Parliament or its committees. This freedom is subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament.

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INDIVIDUAL PRIVILEGES

The privileges belonging to the members individually are:



EXEMPTION FROM ATTENDANCE AS JURORS AND WITNESSES.

They are **exempted from jury service**. They can refuse to give evidence and appear as a witness in a case pending in a court when Parliament is in session.

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BREACH OF PRIVILEGE AND CONTEMPT OF THE HOUSE

1 “When any individual or authority disregards or attacks any of the privileges, rights and immunities, either of the member individually or of the House in its collective capacity, the offence is termed as **breach of privilege** and is punishable by the House.”

2 Though the two phrases, ‘breach of privilege’ and ‘contempt of the House’ are used interchangeably, they have different implications.

3 Contempt of the House may be defined generally as “any act or omission which **obstructs or impedes either House of Parliament or any Member or officer of such House in the discharge of his duty**, or which has a tendency directly or indirectly, to produce such results”.

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BREACH OF PRIVILEGE AND CONTEMPT OF THE HOUSE

- 4** It may be stated that it is not possible to enumerate exhaustively every act which might be construed by the House as a contempt of the House.
- 5** Some of the examples of contempt of Parliament are, however, mentioned below:-
- Speeches or writings reflecting on the House, its Committees or Members;
 - Reflections on the character and impartiality** of the Chairman/Speaker in the discharge of his duty;
 - Publication of false or distorted report of the Proceedings of the House;
 - Pre-mature publication of proceedings**, evidence or report of a Parliamentary Committee;
 - Molestation of Members** on account of their conduct in the House or obstructing Members while in the performance of their duties as Members or while on their way to or coming after, attending the House or a Committee thereof;
 - Offering bribes** to Members to influence them in their Parliamentary conduct;

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BREACH OF PRIVILEGE AND CONTEMPT OF THE HOUSE



- 6 Contempt of the House, however, has wider implications when compared to parliamentary privileges.

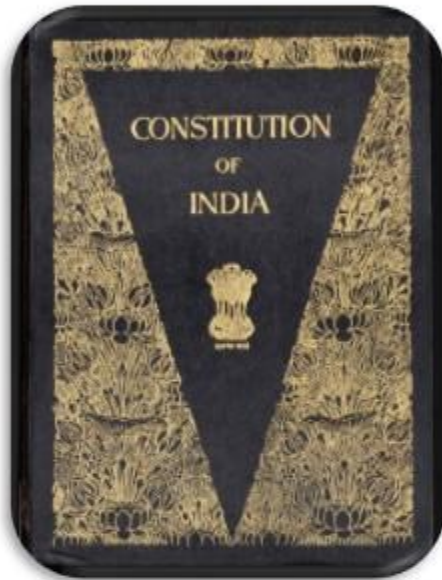
- 7 There may be a contempt of the House without specifically committing a breach of privilege.
- 8 Similarly, 'actions which are not breaches of any specific privilege but are offences against the dignity and authority of the House amount to contempt of the House'.
- 9 For example, **disobedience to a legitimate order of the House is not a breach of privilege, but can be punished as contempt of the House.**

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SOURCES OF PRIVILEGES



- 1 Originally, the Constitution (Article 105) mentioned two privileges, that is, **freedom of speech in Parliament and right of publication of its proceedings.** (Article 194 deals about privileges of State legislatures.)

- 2 With regard to other privileges, it provided that they were to **be the same as those of the British House of Commons**, its committees and its members on the date of its commencement (ie, 26 January, 1950), **until defined by Parliament.**

- 3 The 44th Amendment Act of 1978 provided that the other privileges of each House of Parliament, its committees and its members are to be those which they had on the date of its commencement (ie, 20 June, 1979), until defined by Parliament.

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SOURCES OF PRIVILEGES



- 4 This means that the position with regard to other privileges remains same.

- 5 In other words, the amendment has made only verbal changes by dropping a direct reference to the British House of Commons, without making any change in the implication of the provision.

- 6 It should be noted here that the Parliament, till now, has not made any special law to exhaustively codify all the privileges. They are based on five sources, namely,
1. Constitutional provisions,
 2. Various laws made by Parliament,
 3. Rules of both the Houses,
 4. Parliamentary conventions, and
 5. Judicial interpretations.

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WHAT CONSTITUTES A BREACH OF PRIVILEGE?



- 1 There are **no clearly laid out rules** on what constitutes breach of privilege and what punishment it entails.
- 2 Breach of privilege laws **allow politicians** to become judges in their own cause, raising concerns of conflict of interest and violating the rules of basic fair trial.
- 3 Legislatures have been reluctant, as once privileges are codified they will be **subject to judicial scrutiny**.

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SOLUTIONS TO RESOLVE THE GREY AREA OF PARLIAMENTARY PRIVILEGES



M. N. VENKATACHALIAH

- 1 Parliament and Legislative Assemblies **should pass laws** to codify privilege.

- 2 The **Press Commission** has often taken up the issue of codification of privileges.

- 3 **National Commission to Review the Working of the Constitution** in its report in 2002, suggested that privileges be "defined and delimited."

- 4 Restrict the use of privilege to proceedings of the legislature and not to an individual member. Any member who is falsely accused of any impropriety **can use the defamation route through courts.**

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SOLUTIONS TO RESOLVE THE GREY AREA OF PARLIAMENTARY PRIVILEGES



- 5 It is also the duty of the members to properly use these privileges and not misuse them and protect the general interest of nation and public at large.

- 6 Australia passed the Parliamentary Privileges Act in 1987.

- 7 Courts should revisit the earlier judgments and find the right balance between fundamental rights of citizens and privilege of the legislature.

Power corrupts and absolute power corrupts absolutely. Hence, it is the need of the hour to codified the Parliamentary privileges.

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SOVEREIGNTY OF PARLIAMENT



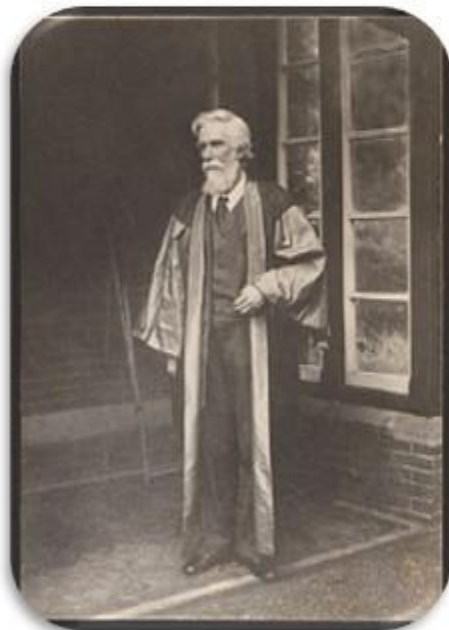
- 1 The doctrine of 'sovereignty of Parliament' is associated with the British Parliament.

- 2 Sovereignty means the supreme power within the State.
- 3 That supreme power in Great Britain lies with the Parliament.
- 4 There are no 'legal' restrictions on its authority and jurisdiction.
- 5 Therefore, the sovereignty of Parliament (parliamentary supremacy) is a cardinal feature of the British constitutional system.

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SOVEREIGNTY OF PARLIAMENT



A.V. DICEY

6 According to AV Dicey, the British jurist, this principle has three implications:

1. The Parliament **can make, amend, substitute or repeal any law**. De Lolme, a British political analyst, said, 'The British Parliament can do every thing except make a woman a man and a man a woman'.
2. The **Parliament can make constitutional laws by the same procedure as ordinary laws**. In other words, there is no legal distinction between the constituent authority and the legislative authority of the British Parliament.
3. The Parliamentary laws cannot be declared invalid by the Judiciary as being unconstitutional. In other words, there is **no system of judicial review** in Britain.

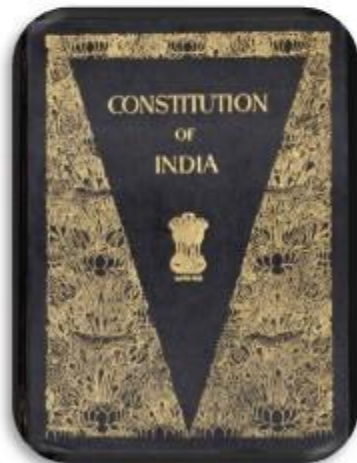
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SOVEREIGNTY OF PARLIAMENT

The Indian Parliament, on the other hand, cannot be regarded as a sovereign body in the similar sense as there are **'legal' restrictions on its authority and jurisdiction**. The factors that limit the sovereignty of Indian Parliament are:

1. WRITTEN NATURE OF THE CONSTITUTION



- 1 The Constitution is the fundamental law of the land in our country.

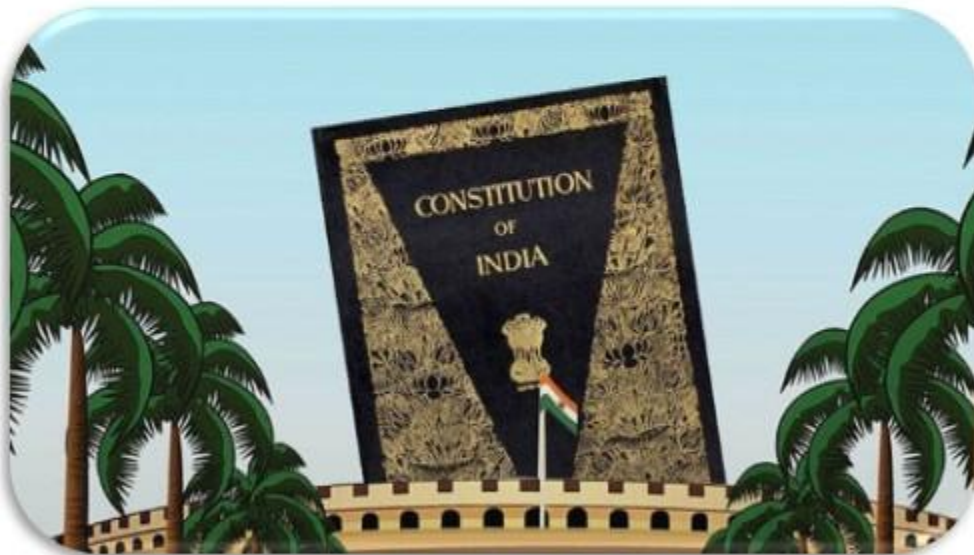
- 2 It has defined the authority and jurisdiction of all the three organs of the Union government and the nature of interrelationship between them.
- 3 Hence, the Parliament has to operate within the limits prescribed by the Constitution.

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1. WRITTEN NATURE OF THE CONSTITUTION



- 4 There is also a legal distinction between the **legislative authority** and the **constituent authority of the Parliament**.
- 5 Moreover, to effect certain amendments to the Constitution, the ratification of half of the states is also required.
- 6 In Britain, on the other hand, the Constitution is neither written nor there is anything like a fundamental law of the land.

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2. FEDERAL SYSTEM OF GOVERNMENT



- 1 India has a **federal system of government with a constitutional division of powers** between the Union and the states.

- 2 Both have to operate within the spheres allotted to them.

- 3 Hence, the law-making authority of the Parliament gets confined to the subjects enumerated in the Union List and Concurrent List and does not extend to the subjects enumerated in the State List (except in five abnormal circumstances and that too for a short period).

- 4 Britain, on the other hand, has a **unitary system of government** and hence, **all the powers are vested in the Centre.**

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3. SYSTEM OF JUDICIAL REVIEW



- 1 The adoption of an independent Judiciary with the power of judicial review also restricts the supremacy of our Parliament.

- 2 Both the Supreme Court and high courts can declare the laws enacted by the Parliament as void and ultra vires (unconstitutional), if they contravene any provision of the Constitution.

- 3 On the other hand, there is no system of judicial review in Britain.

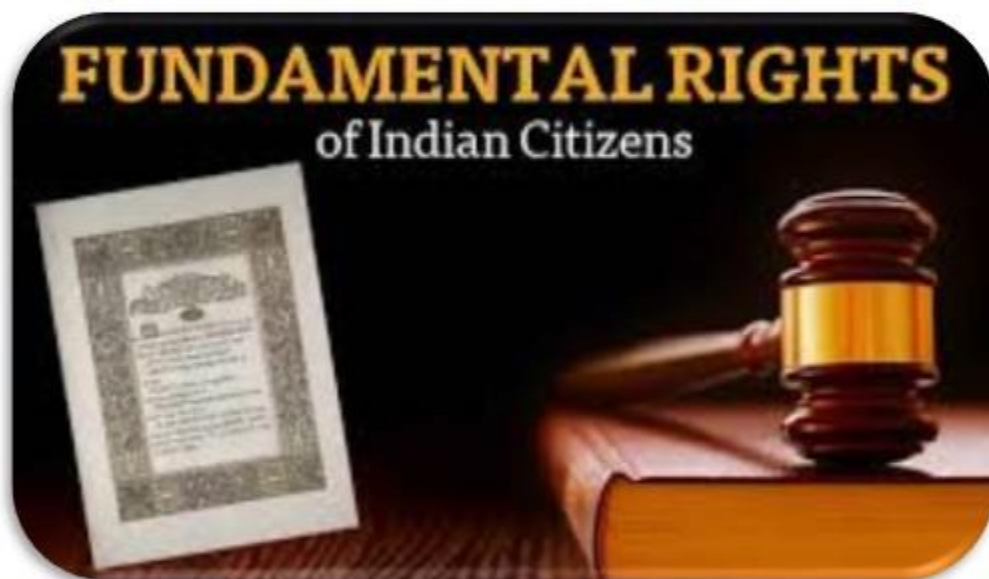
- 4 The British Courts have to apply the Parliamentary laws to specific cases, without examining their constitutionality, legality or reasonableness.

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4. FUNDAMENTAL RIGHTS



- 1 The authority of the Parliament is also restricted by the incorporation of a code of **justiciable fundamental rights** under Part III of the Constitution.

- 2 Article 13 prohibits the State from making a law that either takes away totally or abrogates in part a fundamental right.

- 3 Hence, a Parliamentary law that contravenes the fundamental rights shall be void.

- 4 In Britain, on the other hand, there is no codification of justiciable fundamental rights in the Constitution.

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4. FUNDAMENTAL RIGHTS



5 The British Parliament has also not made any law that lays down the fundamental rights of the citizens.

6 However, it does not mean that the British citizens do not have rights.

7 Though there is no charter guaranteeing rights, there is maximum liberty in Britain due to the existence of the Rule of Law.

8 Therefore, even though the nomenclature and organizational pattern of our Parliament is similar to that of the British Parliament, there is a substantial difference between the two.

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4. FUNDAMENTAL RIGHTS

- 9** The Indian Parliament is not a sovereign body in the sense in which the British Parliament is a sovereign body.



- 10** Unlike the British Parliament, the authority and jurisdiction of the Indian Parliament are defined, limited and restrained.
- 11** In this regard, the Indian Parliament is similar to the American Legislature (known as Congress).
- 12** In USA also, the sovereignty of Congress is legally restricted by the written character of the Constitution, the federal system of government, the system of judicial review and the Bill of Rights.

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